

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lara Freishtat	Team: Team # 4	CCRB Case #: 200514336	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 11/26/2005 11:35 PM	Location of Incident: § 87(2)(b) followed by the 110th Precinct stationhouse	18 Mo. SOL 5/26/2007	Precinct: 110
Date/Time CV Reported Tue, 11/29/2005 12:46 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/29/2005 12:46 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Perez	27862	930939	110 PCT
2. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Jozsef Ban	00000	915274	113 PCT
2. POF Kimberly Skow	24050	935757	110 PCT
3. POF Nicole Ruggiero	24031	935660	110 PCT
4. POF Lakiya Reid	01996	935575	110 PCT
5. POM Christop Elwood	10540	920251	110 PCT
6. POM Roberto Espinal	05672	934326	110 PCT

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Force: Officers used physical force against § 87(2)(b) at § 87(2)(b) in Queens.	A . Complaint Withdrawn
B . POM Michael Perez	Force: PO Michael Perez used physical force against § 87(2)(b) at the 110th Precinct stationhouse.	B . Exonerated
C . POM Michael Perez	Force: PO Michael Perez used physical force against § 87(2)(b) at the 110th Precinct stationhouse.	C . Exonerated
D . POM Michael Perez	Discourtesy: PO Michael Perez spoke rudely to § 87(2)(b) and § 87(2)(b) at the 110th Precinct stationhouse.	D . Exonerated
E . Officers	Discourtesy: Officers spoke rudely to § 87(2)(b) and § 87(2)(b) at the 110th Precinct stationhouse.	E . Exonerated

Synopsis

On November 26, 2005, at approximately 11:30 PM, in the vicinity of § 87(2)(b) in Queens, officers arrested § 87(2)(b) for § 87(2)(b). In the course of his arrest, officers threw § 87(2)(b) to the ground and punched him in his face (allegation A). Following his arrest, § 87(2)(b) received a telephone call informing her that her brother § 87(2)(b) was arrested. Because of this, § 87(2)(b) and her boyfriend, § 87(2)(b) went together to the 110th Precinct stationhouse to check on § 87(2)(b). However, as soon as they entered the stationhouse, an officer instructed them to leave. They attempted to explain their reason for being at the stationhouse, but the officer repeatedly told them to leave the stationhouse. PO Michael Perez then approached them and also instructed them to leave the stationhouse. However, as he gave this instruction, he lightly pushed § 87(2)(b) in the chest (allegation B). PO Perez continued to push § 87(2)(b) until he was outside of the stationhouse. Once outside though, § 87(2)(b) turned around and said to PO Perez, “This is bullshit. Fuck this and fuck you!” In response, PO Perez pushed § 87(2)(b) hard in the chest, causing him to fall down a couple of the steps leading to the stationhouse. § 87(2)(b) then intervened by standing in front of PO Perez, while she told him he could not push § 87(2)(b) and that they were only there for her brother. PO Perez responded by pushing § 87(2)(b) in the chest and again telling them they had to leave (allegation C). § 87(2)(b) then yelled at PO Perez that he could not touch § 87(2)(b) because she was a “lady.” However, PO Perez said, he “did not care that she is a lady, [he’d] still hit her.” He then again told them that they had to “get the fuck out (allegation D).” Multiple officers then joined them outside of the stationhouse and were yelling at § 87(2)(b) and § 87(2)(b) to “get the fuck out (allegation E).” An officer then approached them and told them that if they did not “get the fuck out, [they] would be arrested. § 87(2)(b) and § 87(2)(b) eventually left the stationhouse without receiving information about § 87(2)(b) § 87(2)(b).

§ 87(2)(g)
it is recommended that allegation A be closed complaint withdrawn. § 87(2)(g)
(g)
As such, it is recommended that allegations B and C be exonerated.
§ 87(2)(g)
it is recommended that allegations D and E be exonerated.

§ 87(2)(g)
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Summary of Complaint

While § 87(2)(b) was a victim in this incident, he decided to withdraw his complaint due to his criminal case. He stated that this withdrawal was voluntary and he had not been coerced by anyone from the CCRB or the NYPD. A withdrawal letter was mailed to his home. As such, his statement about the incident was not obtained.

§ 87(2)(b)

§ 87(2)(b) filed a complaint by telephone with the CCRB on November 29, 2005 (see enclosure # 6a-6b). She was interviewed at the CCRB on December 7, 2005 (see enclosure # 7a-7b).

On November 26, 2005, at approximately 11:35 PM, § 87(2)(b) went to the 110th Precinct stationhouse with her boyfriend, § 87(2)(b) to check on the status of her brother, who had just been arrested earlier that night. They entered the stationhouse and were standing by the gate, which blocks entry into the main area of the stationhouse, when a female officer immediately told them that they had to step

out. § 87(2)(b) explained the reason they were there, but the officer told them again that they had to leave. After the female officer had instructed them to leave a couple of times, PO Perez stepped forward and told them they had to leave. § 87(2)(b) and § 87(2)(b) again attempted to explain their reason for being there, but they were told that the officers couldn't help them.

While telling them to leave, PO Perez pushed § 87(2)(b) lightly a couple of times, in an effort to get them to leave the precinct. He pushed § 87(2)(b) outside the stationhouse and once outside, § 87(2)(b) turned around and said, "This is bullshit, fuck you" to PO Perez. PO Perez then pushed § 87(2)(b) extremely hard, causing him to fall down a couple of steps to the landing. She described the stairs leading to the stationhouse as a few steps leading to a landing then a few more steps before the actual entrance into the stationhouse. § 87(2)(b) stated she was not sure where on his body PO Perez pushed § 87(2)(b). After pushing him, § 87(2)(b) intervened, stepping in front of PO Perez, and told him that he could not touch § 87(2)(b) and that they were only there for her brother.

PO Perez responded by pushing § 87(2)(b) backwards and saying that they had to "get out" and that they "could not be [there]." § 87(2)(b) stated that she thought he pushed her with one hand and he placed it near her breasts. Because § 87(2)(b) was standing on the steps, she grabbed PO Perez's shirt, so she could maintain her balance. She then let go of his shirt and § 87(2)(b) approached PO Perez, telling him that he could not touch § 87(2)(b) because she is a "lady." PO Perez responded by saying, "I don't care that she is a lady, I'll still hit her." He then told them that they needed to "get the fuck out."

By this point, they were out on the sidewalk and other officers had come outside. Approximately ten to fifteen uniformed officers were standing outside, blocking the entrance to the stationhouse, yelling at them that they needed to "get the fuck out." PO Perez went back inside and two other officers approached them, explaining that they would not be able to get any information and they should call the stationhouse in a couple of hours. § 87(2)(b) asked to speak with a supervisor, but the officers informed her that a supervisor would not come outside and talk to her. § 87(2)(b) and § 87(2)(b) left the stationhouse, but the next day, she returned the stationhouse to see her brother. Once there, she saw PO Perez and she asked him for his name and shield number, which he provided. § 87(2)(b) stated that neither she nor § 87(2)(b) was ever informed why they were not allowed to be inside the stationhouse.

§ 87(2)(b) described the female officer as light-skinned and either white or Hispanic. She stated that she had dark hair, glasses, was thin and was approximately 5'3. § 87(2)(b) stated she could only describe two of the officers who were yelling at them to leave the stationhouse. She described the first officer as a large bald white man, with a mustache. She described the second officer as a young white man, who was approximately 5'7.

§ 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on December 7, 2005 (see enclosure # 8a-8b).

§ 87(2)(g)

§ 87(2)(b) stated that PO Perez was the first officer to approach them and that he said, "You have got to step out, you have got to get the fuck out." He further stated that while pushing him, PO Perez also said to him that he, § 87(2)(b) "did not need to know shit" and repeatedly told him to "get the fuck out." While § 87(2)(b) stated that PO Perez used profanity towards them, she stated that he did so near the end of their interaction with him, not right from the start of the incident. § 87(2)(b) stated that PO Perez said, in reference to § 87(2)(b) that he "did not give a fuck if she is a lady" and that he "could still hit her no matter what," which is different from § 87(2)(b)'s account. § 87(2)(b) also alleged that PO Perez referred to § 87(2)(b) as a "bitch," which she never alleged. § 87(2)(b) also alleged that PO Perez physically removed § 87(2)(b)'s hands from his shirt, while § 87(2)(b) stated that she, on her volition, released PO Perez's shirt. Lastly, § 87(2)(b) stated that the uniformed officers were physically restraining him from attacking PO Perez and that one officer threatened to arrest them if they did not leave the stationhouse, which § 87(2)(b) never mentioned.

§ 87(2)(b) was only able to describe the officer who arrested him and he stated that he was a white male, approximately 6 feet tall, had a large mustache, hairy eyebrows and was in his forties.

While both § 87(2)(b) and § 87(2)(b) thought that they could possibly identify the officers present from photographs, neither of them cooperated by coming to the CCRB and looking at photographs of possible subject officers. Numerous telephone calls were placed and letters were mailed to both of them, but § 87(2)(b) missed a scheduled appointment to look at the photographs and they both refused to contact the agency to schedule a date for them to view the photographs.

Results of Investigation

Officer Identification:

§ 87(2)(b) identified PO Michael Perez as being one of the subject officers in this incident. The remaining officers interviewed by the CCRB were identified through roll call or the command log as possibly being present during this incident.

Officer Statements:

PO Michael Perez:

PO Michael Perez was interviewed at the CCRB on March 9, 2006 (see enclosure # 9a-9b). He stated that on November 26, 2005, he worked the hours of 1500x2335 and was working as the T/S Operator in the stationhouse. He stated he was dressed in uniform and did not have any memobook entries in regard to this incident.

On November 26, 2005, at approximately 11:30 PM, § 87(2)(b) and § 87(2)(b) entered the 110th Precinct stationhouse, and were acting in an “irate and uncontrollable manner.” PO Perez stated that normally when visitors come to the stationhouse, they obey the stop sign at the front of the stationhouse and wait by a gate for an officer to approach them. However, in this instance, both § 87(2)(b) and § 87(2)(b) went immediately through the gate and tried to approach § 87(2)(b) who was a prisoner and was standing at the front desk at the time. § 87(2)(b) and § 87(2)(b) were also yelling and cursing, but PO Perez could not recall what they were saying. PO Perez, who was the telephone/switchboard operator, was stationed behind the front desk with the desk sergeant, though he could not recall who it was. There were also approximately ten uniformed officers in the surrounding area. Immediately after § 87(2)(b) and § 87(2)(b) entered the stationhouse, two uniformed female officers approached them and grabbed them by the arms and escorted them out of the stationhouse. As they were escorting them out, § 87(2)(b) and § 87(2)(b) were still being “combative” and it was obvious they did not want to leave.

The female officers then re-entered the stationhouse and § 87(2)(b) and § 87(2)(b) followed them back inside. Both of them went straight through the gate a second time and attempted to approach § 87(2)(b). This time PO Perez intercepted them, and asked them to leave multiple times. However, both of them refused to leave and were screaming at PO Perez, saying to him “fuck you” and “fuck this” and that he could not tell them to leave. PO Perez stated that they wanted them to leave the stationhouse because they were being “disruptive” and it was “unsafe” for them and for the officers for them to be in the stationhouse, attempting to get to § 87(2)(b). After a few seconds, at most a minute, of trying to get them to leave, PO Perez put his hand on § 87(2)(b)'s upper back and attempted to guide her, though his first word to describe this action was “push,” her out of the stationhouse. However, § 87(2)(b) again refused to leave. PO Perez, from behind her, then grabbed § 87(2)(b) with both hands by her upper arms and escorted her out of the stationhouse. PO Perez stated this was the only time he had contact with § 87(2)(b). § 87(2)(b) also left the stationhouse, but PO Perez was not sure if he followed behind them or went out first.

Both § 87(2)(b) and § 87(2)(b) continued to yell and curse at PO Perez as he was escorting them outside. However, § 87(2)(b) also began to yell at PO Perez that he could not “fucking touch her,” referring to § 87(2)(b). PO Perez reiterated that they had to leave the stationhouse and asked them to come back after they had “cooled off.” As he was saying this, § 87(2)(b) clenched his fists, which were

down by his waist. PO Perez suspected § 87(2)(b) was going to hit him and asked him as much. § 87(2)(b) did not respond, but he approached PO Perez, coming up the steps. PO Perez then let go of § 87(2)(b) who went down to the landing a few steps below, and lifted both of his hands up in the air, palms up, and placed them against § 87(2)(b)'s chest and pushed him backwards to keep § 87(2)(b) away from him. § 87(2)(b) fell down a step, but never fell to the ground.

Up until this point, PO Perez had been the lone officer with § 87(2)(b) and § 87(2)(b). However, when PO Perez pushed § 87(2)(b) away, the officers from inside the stationhouse must have seen what was going on through the window, because four to five officers joined them outside. The officers took control of the situation and escorted § 87(2)(b) and § 87(2)(b) away from the stationhouse. PO Perez stated he did not see or hear what, if anything, happened between the officers and § 87(2)(b) and § 87(2)(b) because he returned to the stationhouse and resumed his duties and the officers never mentioned anything to him. He was aware though that a sergeant went outside and spoke with them and he thought informed them that if they did not calm down, they would be arrested. § 87(2)(b) and § 87(2)(b) then left the area. PO Perez stated that § 87(2)(b) came into the stationhouse the next day and asked him for his name and shield number, which he provided.

PO Perez stated the whole incident lasted less than five minutes and in that time, the only physical contact he had with § 87(2)(b) was placing his hand on her back and her arms. He stated he did not touch her anywhere else on her body and did not have his hands near her breasts. He also stated that the only time he had physical contact with § 87(2)(b) was when he put his hands against his chest to keep him away. He denied using any profanity when addressing them, even in the course of giving an order, but he admitted that he did raise his voice in an attempt to get them to leave stationhouse. He also denied hearing any officers use profanity towards them.

LT Jozsef Ban:

LT Jozsef Ban was interviewed at the CCRB on April 7, 2006 (see enclosure # 10a-10b). He stated that on November 26, 2005, he was of the rank Sergeant and he worked 2305x0802 and was the desk sergeant. He was dressed in uniform and he did not have any memobook entries regarding this incident.

On November 26, 2005, LT Jozsef Ban, who at the time was of the rank sergeant, began his tour as desk sergeant early, when a call came over the radio about some officers from the third tour who were chasing a robbery suspect. In response, LT Ban sent officers to assist. At approximately 11:30 PM, the robbery suspect, § 87(2)(b) was apprehended and brought into the 110th Precinct stationhouse. At that time, approximately 5-10 officers were inside the stationhouse from both tour 3 and tour 1 from November 27, 2005. § 87(2)(b) had been placed in front of the desk and was yelling and acting belligerent, though the officers were trying to calm him down. LT Ban stated that § 87(2)(b) was yelling about his sister § 87(2)(b) § 87(2)(b)

At some point, a group of approximately 3-5 people came into the stationhouse and LT Ban thought they were friends or family of § 87(2)(b). He stated that the group of individuals was also yelling and screaming about how § 87(2)(b)'s sister had died and how he should be released. They were also yelling at § 87(2)(b) who was yelling back to them. LT Ban could not remember the content of what they were yelling to one another, but he remembered everyone being extremely loud and disruptive. The officers, in an attempt to de-escalate the situation, attempted to remove § 87(2)(b) to a holding cell, but he refused to go and physically dropped to the floor.

LT Ban stated that possibly he or some of the other officers in the area instructed the group of people to leave the stationhouse because things were getting out of hand. He stated the group had repeatedly been asked to calm down, but because they refused, they were told they had to leave. LT Ban then realized that something was wrong with § 87(2)(b) who was still on the ground, so EMS was called. The group of people then went outside, he thought escorted by some officers, but LT Ban stated he was not focused on the group, as he was trying to assist with § 87(2)(b) so he could not say how many officers were involved. He described the group as still upset when they went outside, but assumed they had calmed

down, because at one point, he saw them walking calmly away from the stationhouse and they made no indication about wanting to file a complaint.

LT Ban stated he did not recall which officers specifically ordered the group of people out of the stationhouse. He stated he could not specifically say if he heard anyone threaten to arrest anyone from the group, though it would have been justified if they did, because of how they were acting. He stated he recalled that the group of people was extremely loud, though he could not say if they had used profanity. He denied hearing PO Perez or any officer use profanity or make physical contact with the members of the group during this incident.

PO Lakiya Reid:

PO Lakiya Reid was interviewed at the CCRB on May 3, 2006 (see enclosure # 13a-13b). She stated that on November 26, 2005, she worked the hours of 1100x 1540 the following day and at the time of the incident she was assigned to patrol with PO Roberto Espinal. She stated she was dressed in uniform and assigned to a marked motor vehicle. She did not have any memobook entries in regard to this incident.

PO Lakiya Reid stated that at approximately 11 PM, she was called to do a show-up in regard to a robbery. She and PO Espinal drove to § 87(2)(b) and § 87(2)(b) in Queens with the victim of a § 87(2)(b) so the victim could look at a suspect the police had stopped. The suspect, § 87(2)(b) was identified and subsequently arrested and taken to the 110th Precinct stationhouse. PO Reid stated that while she was § 87(2)(b)'s arresting officer, she did not accompany him to the stationhouse. Rather she continued to drive the victim around in hopes of identifying the remaining perpetrators.

PO Reid stated she was not aware of who logged § 87(2)(b) into the command log at 11:37 PM. She also stated that she processed his arrest the following day and that was the first time she had spoken with him. While she was processing his arrest on the following day, § 87(2)(b) § 87(2)(b)'s sister, called the stationhouse to speak with PO Reid. § 87(2)(b) mentioned to her that she had gone to the stationhouse the night of the arrest and she wanted to know who the arresting officer was and who had been present at the stationhouse during the time she was there. PO Reid informed her that she did not know who had been there, as she had not been present at the time. PO Reid could not recall if § 87(2)(b) indicated if there had been a problem the night she visited the stationhouse.

Officer Statements Not Included:

§ 87(2)(b) PO Kimberly Skow, PO Nicole Ruggiero, PO Christopher Elwood and PO Roberto Espinal were interviewed by the CCRB, § 87(2)(g). They all stated that they had no recollection of this incident and did not think they were present for it.

Officers Not Interviewed:

§ 87(2)(g)
This incident happened during a tour change and the list of officers possibly present at the stationhouse is lengthy. The Interrupted Patrol Log and Movement Log from the 110th Precinct only showed LT Ban, who was the desk sergeant, and PO Ruggiero as having been present at the stationhouse during that time and both of them were interviewed by the CCRB (see enclosure # 21a). Additionally, the SPRINT report did not mention which unit transported § 87(2)(b) back to the stationhouse and thus may have been present during this incident (see enclosure # 17a-17i). Furthermore, all of the officers interviewed were unable to identify other officers present during this incident. And lastly, neither § 87(2)(b) nor § 87(2)(b) cooperated by viewing photographs of possible subject officers and they were unable to provide detailed descriptions of the officers during their respective CCRB interviews § 87(2)(g)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Officer CCRB History:

PO Michael Perez, who has been a member of the NYPD for four years, does not have any substantiated CCRB complaints (see enclosure # 2a).

Conclusions and Recommendations

Facts:

The undisputed facts of this case are as follows: on November 26, 2005, § 87(2)(b) was arrested and brought to the 110th Precinct stationhouse for arrest processing. His sister, § 87(2)(b) and her boyfriend, § 87(2)(b) went to the stationhouse to check on § 87(2)(b). While at the stationhouse, PO Perez instructed them to leave the stationhouse multiple times. At one point during this incident, PO Perez pushed § 87(2)(b) and he made physical contact with § 87(2)(b) to which § 87(2)(b) told PO Perez not to touch her, referring to § 87(2)(b). Eventually, additional officers joined the scene and they took control of the situation. § 87(2)(b) and § 87(2)(b) eventually left the stationhouse but § 87(2)(b) returned the following day and asked PO Perez for his name and shield number, which he provided.

Facts in Dispute:

§ 87(2)(g)

Credibility:

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Analysis of Allegations:

Allegation A: Officers used physical force against § 87(2)(b) at § 87(2)(b) in Queens.

§ 87(2)(b) alleged that in the course of arresting § 87(2)(b) officers threw him to the ground and punched him in the face. Due to the fact that his criminal case was still ongoing, § 87(2)(b)'s attorney, § 87(2)(b), was contacted by telephone. He later contacted the agency and withdrew § 87(2)(b)'s complaint on his behalf due to his ongoing criminal case. § 87(2)(b) also contacted the agency and left a telephone message, indicating his desire to withdraw his complaint. A withdrawal letter was mailed to his home with the request that it be signed, dated and returned to the agency. However, to date, it has not been received. Due to § 87(2)(b) and § 87(2)(b)'s desire to withdraw § 87(2)(b)'s complaint, it is recommended that allegation A be closed as *complaint withdrawn*.

Allegation B: PO Michael Perez used physical force against § 87(2)(b) at the 110th Precinct stationhouse.

Allegation C: PO Michael Perez used physical force against § 87(2)(b) at the 110th Precinct stationhouse.

§ 87(2)(b) and § 87(2)(b) both alleged that PO Perez lightly pushed § 87(2)(b) multiple times in an effort to remove him from the stationhouse before pushing him hard one time once on the steps of the stationhouse. They further alleged that § 87(2)(b) then intervened in the situation and PO Perez pushed her also. PO Perez denied doing so, stating that he only pushed § 87(2)(b) once and that was because § 87(2)(b) approached him with clenched fists and he thought § 87(2)(b) was going to hit him. He also denied pushing § 87(2)(b) on the steps of the stationhouse, stating that he lightly pushed/escorted her to the outside of the stationhouse. § 87(2)(g)

As such, it is recommended that allegations B and C be closed as *exonerated*.

Allegation D: PO Michael Perez spoke rudely to § 87(2)(b) and § 87(2)(b) at the 110th Precinct stationhouse.

Allegation E: Officers spoke rudely to § 87(2)(b) and § 87(2)(b) at the 110th Precinct stationhouse.

While § 87(2)(b) alleged that PO Perez used profanity throughout the incident, § 87(2)(b) alleged that he only did so at the end of the incident, when he told them to “get the fuck out,” an allegation

that PO Perez denied. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] In PD vs. White, the subject officer was attempting to control a crowd when he yelled at them to “get the fuck back.” DCT dismissed the charge of speaking in a discourteous manner, finding that the subject officer used profanity in his verbal command to “gain cooperation....which can be distinguished from a gratuitous disrespectful remark (see enclosure # 1a-1d).”

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
§ 87(2)(g) [REDACTED]
[REDACTED] it is recommended that allegation D be closed as *exonerated*.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED], and it is recommended that allegation E be closed as *exonerated*.

Allegation Not Pleaded:

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Investigator:	Date:
Supervisor:	Date:
Reviewed by:	Date:

Reviewed by:

Date: